

COMMERCIAL LEASE AGREEMENT

THIS COMMERCIAL LEASE AGREEMENT (the "**Lease**") is made and effective on the 9th day of September 2023, by and between **UDREAM LLC** (hereinafter referred to as "**Landlord**") and **RIYA CONVENIENCE LLC**, (hereinafter referred to as "**Tenant**").

RECITALS

WHEREAS, Landlord is the Owner of the property located at 399 Park Avenue, Piscataway, NJ 08854 (the "**Building**"); and

WHEREAS, Landlord desires to lease the Leased Premises to Tenant, and Tenant desires to lease the Leased Premises from Landlord for the term, at the rental and upon the covenants, conditions and provisions herein set forth.

NOW THEREFORE, in consideration of the mutual promises herein, contained and other good and valuable consideration, it is agreed:

LEASE SUMMARY

1. **Landlord:** **UDREAM LLC**
2. **Tenant:** **RIYA CONVENIENCE LLC**
3. **Guarantor(s):** **MUKESHCHANDRA MOHANLAL PATEL & GAURIBEN MUKESHCHANDRA PATEL**
4. **Broker:** None
5. **Building:** The commercial unit at 399 Park Avenue, Piscataway, NJ 08854 and all buildings and other improvements now or hereafter located thereon.
6. **Rental Unit:** Commercial Unit located at **399 Park Avenue, Piscataway, NJ 08854**
7. **Term:** Five (5) Lease Years.
8. **Renewal Terms:** Two (2) Extension Periods, having Five (5) Lease Years.
9. **Lease Date:** September 9, 2024.
10. **Rent Commencement Date:** September 9, 2024.

11. Expiration Date: The date that is the last calendar day of the last scheduled Lease Year of the Term.

12. Base Rent: As set forth below:

Annual Base Rent Schedule

<u>Portion of Term</u>	<u>Base Rent Per Year</u>	<u>Base Rent Per Month</u>
Lease Year 1	\$26,400.00	\$2,200.00
Lease Year 2	\$26,400.00	\$2,200.00
Lease Year 3	\$27,456.00	\$2,288.00
Lease Year 4	\$28,554.24	\$2,379.52
Lease Year 5	\$29,696.41	\$2,474.71

13. Base Rent Escalation: 4% increase annually starting from Lease Year 3

14. Operating Expenses: Tenant shall be responsible for actual expenses attributable to the Building (Real Estate Taxes, Property Insurance, Utilities) (See Section 5). Tenant's obligations to make payment for its portion of the Real Estate Taxes shall commence as of September 1, 2026.

15. Security Deposit: \$4,400.00 [Two Months Base Rent]

16. Tenant's Trade Name: Cooks Grocery & Deli

17. Permitted Use: Convenience Store

18. Landlord's Notice Address: UDREAM LLC
Attention: Rajeshree Patel
607 Park Avenue
Piscataway, New Jersey 08854

19. Guaranty: Per **Exhibit A**, made a part hereof.

20. Tenant's Notice Address: RIYA CONVENIENCE LLC
Attention: Mukeshchandra Mohanlal Patel
399 Park Avenue, Commercial Unit
Piscataway, New Jersey 08854

LEASE AGREEMENT

1. **TERM.** Landlord hereby leases the Leased Premises to Tenant, and Tenant hereby leases the same from Landlord, for an "Initial Term" beginning on the date that the Tenant takes possession of the premises, for a term of occupancy of Five (5) years, unless extended in writing and acknowledged by both parties.

2. **USE.** The Leased Premises are to be used and occupied only and for no other purpose than that of a Convenience Store/Deli. The Tenant will not and will not allow others to occupy or use the Premises or any part thereof for any purposes, other than as specified in this Paragraph, and not for any purpose deemed unlawful, disreputable, or extra hazardous, on account of fire or other casualty.

3. **OPTION TO EXTEND TERM.** Tenant has the right to extend this Lease beyond the expiration date based on the following terms and conditions of the Lease, Tenant may extend the term of this Lease for two (2) additional periods of Five (5) years, to commence on the day following the expiration date of the immediately preceding term. However, if at the date of expiration of the original term, Tenant is in default in the performance of any of the terms or provisions of this Lease, the option or options shall be null and void. All the terms, covenants, and provisions of this Lease shall apply to all extended lease terms, and there will be no further right of renewal.

a) Tenant may exercise each option to extend this Lease by giving to Landlord notice of its intention to do so not later than three (3) months prior to the expiration of the initial Term or first option period. To constitute effective notice of an intention to exercise an option under this Lease, the notice must be sent by certified mail to Landlord at its address and must be postmarked no later than three (3) months prior to the expiration date of this Lease, or any other effective notice as expressed by the Landlord prior to the expiration. During the renewal period, the Base Rent, Taxes, Insurance, and Utilities shall be as set forth as indicated below.

4. **RENT.** Tenant shall pay rent payable in installments of \$2,200.00 per month. Each installment payment shall be due in advance on the first day of each calendar month during the lease term to Landlord at 607 Park Avenue, Piscataway, NJ 08854 or at such other place designated by written notice from Landlord or Tenant. The rental payment amount for any partial calendar months included in the lease term shall be prorated on a daily basis. Beginning from the 3rd year of the Lease, the rental amount shall be increased annually by four percent (4%). Tenant must pay a late charge of \$150.00 as additional rent for each payment that is more than 5 days late. This late charge is due with the monthly rent payment. The Tenant must also pay a fee of \$100.00 as additional rent for any dishonored check.

a) **Security Deposit.** Upon the signing of this Lease, Tenant shall pay to Landlord a "Security Deposit" in the amount of Two Months Base Rent of \$4,400.00. In no event shall said security deposit be deemed to be a prepayment of rent nor shall it be considered a measure of liquidated damages. Tenant agrees that no interest shall accrue on said security deposit and that Landlord shall have no obligation to maintain said security deposit in a separate account. In the event that Tenant shall default in any of its obligations under this Lease, Landlord shall have the right, with prior notice to Tenant, to apply said security deposit (or any portion thereof) towards the cure of any such default and Tenant shall promptly, upon notice from Landlord, pay to Landlord any amount so applied by Landlord in order to restore the full amount of said security deposit. The application of all or any part of the security deposit to any obligation or default of Tenant under this Lease shall not deprive Landlord of any other rights or remedies Landlord may have nor shall such application by Landlord constitute a waiver by Landlord. Provided that Tenant is not in default of any of its obligations under this Lease at the expiration or earlier termination of this Lease, Landlord shall refund to Tenant all of said security deposit which Landlord is then holding

5. **UTILITIES/TAXES/MAINTENANCE.**

a) **Real Estate Taxes.** Tenant shall pay, as additional rent, all real estate taxes assessed, levied, imposed or payable during the term of this Lease with respect the premises. Landlord and Tenant agree that Tenant shall make the payments in monthly installments. Tenant's obligations to make payment for its portion of the Real Estate Taxes shall commence as of September 1, 2026. Landlord shall send quarterly tax bill to Tenant as of September 1, 2026.

b) **Utilities.** The Tenant shall be solely responsible for all Utilities at the premises inclusive of electric, telephone, heat, gas, sewer and water. If Landlord makes any payments to any third party on behalf of the Tenant, Tenant shall pay such payment by the Landlord to the Landlord. If Tenant fails to make payment within five days, the Late Payment Penalty shall be added to the invoice as additional rent. Landlord will send Tenant a monthly invoice for the water. Tenant shall make payment to Landlord, as additional rent, for the water within five (5) days after receipt of the invoice. Landlord will send a quarterly bill for payments due for sewer. Tenant shall make payment, as additional rent, to Landlord for sewer within five (5) days from receipt of the sewer bill.

c) **Maintenance.** All maintenance shall be the responsibility of the Tenant. Tenant agrees to maintain all walk ways surrounding the Premises, including keeping the walkways at the front, side, and back of the store free of debris, overgrown shrubs and snow. Tenant further agrees that general maintenance including cleaning and janitorial services shall be the responsibility of the Tenant. Tenant further acknowledges that all expenses incurred for snow removal, removal of debris, and/or other regular maintenance expenses shall be exclusive responsibility of Tenant, including all landscaping expenses/gardening/ and any other outside expenses.

6. **REPAIRS AND CARE.** The Tenant has examined the Premises and has entered into this Lease without any representation on the part of the Landlord as to the condition thereof. The Tenant will take good care of the Premises and will, at the Tenant's own cost and expense, make all repairs, including painting, decorating, and will maintain the Premises in good condition and state of repair, and at the end of other expiration of the term hereof, will deliver up the Premises in good order and condition, wear and tear from a reasonable use thereof, and damage by the elements not resulting from the neglect or fault of the Tenant, excepted. The Tenant will neither encumber nor obstruct the sidewalks, driveways, yards, entrances, hallways and stairs, but will keep and maintain the same in a clean condition, free from debris, trash, refuse, snow and ice. Tenant shall make, at Tenant's expense, all necessary repairs to the Leased Premises. Repairs shall include such items as routine repairs of floors, walls, ceilings, and other parts of the Leased Premises damaged or worn through normal occupancy including all interior repairs, including plumbing, repairs to heating, air conditioning, heating, etc. Landlord shall be responsible for repairs for all exterior portions of the Premises including repairs and maintenance of the roof.

7. **ALTERATIONS AND IMPROVEMENTS.** Tenant, at Tenant's expense, shall have the right, only after Landlord's consent, which shall not be unreasonably withheld, to remodel, redecorate, and make additions, improvements and replacements of and to all or any part of the Leased Premises from time to time as Tenant may deem desirable, provided the same are made in a workmanlike manner, utilizing good quality materials, and with all necessary municipal permits and clearances. Tenant shall have the right to place and install personal property, trade fixtures, equipment and other temporary installations in and upon the Leased Premises, and fasten the same to the premises. All personal property, equipment, machinery, trade fixtures and temporary installations placed or installed on the Leased Premises by Tenant thereafter, shall remain Tenant's property free and clear of any claim by Landlord. Tenant shall have the right to remove the same at any time during the term of this Lease provided that all damage to the Leased Premises caused by such removal shall be repaired by Tenant at Tenant's expense. Any permanent fixtures installed by the Tenant during the Term shall be Landlord's property upon the expiration of the Term.

8. **INSURANCE.** The Tenant, at Tenant's own cost and expense, will obtain or provide and keep in full force for the benefit of the Landlord, during the term hereof, commercial general liability insurance, insuring the Landlord against any and all liability or claims of liability arising out of, occasioned by or resulting from any accident or otherwise in or about the Premises for injuries to any persons, for limits of not less than \$1,000,000.00 for property damage, \$1,000,000.00 for injuries to one person and \$2,000,000.00 for injuries to more than one person, in any one accident or occurrence. The Tenant must provide an insurance certificate with UDREAM LLC (Address: 607 Park Avenue, Piscataway, NJ 08854, as Certificate Holder or Additional Insured. Additionally, Tenant at Tenant's own cost and expense shall obtain and keep fire and casualty insurance with broad form extended coverage, including, but not limited to coverage for vandalism and malicious mischief in amount of the full-replacement cost, from time

to time, of Tenant's trade fixtures, equipment, inventory, and other contents of the Leased premises. Additionally, Tenant must obtain and keep business interruption insurance in an amount satisfactory to the Landlord, but in no event, less than twelve (12) months minimum rent, and workers compensation insurance. The insurance policies will be with companies authorized to do business in this State and will be delivered to the Landlord, together with proof of payment. At least fifteen days prior to the expiration or termination date of any policy, the Tenant will deliver a renewal or replacement policy with proof of the payment of the premium therefore.

9. SIGNS. The Tenant may not place nor allow to be placed any signs upon, in or about the Premises, except as may be consented to by the Landlord in writing, which consent will not be unreasonably withheld. The Landlord or the Landlord's agents, employees or representatives may remove any such signs in order to paint or make any repairs, alterations or improvements in or upon the Premises or any part thereof, but such signs will be replaced at the Landlord's expense when such repairs, alterations or improvements are completed. Any signs permitted by the Landlord will at all times conform with all municipal ordinances or other laws and regulations applicable thereto.

10. ASSIGNMENT. The Tenant will not, without the written consent of the Landlord, assign, mortgage or hypothecate this Lease, nor sublet or sublease the Premises or any part thereof, in which consent will not be un-reasonably withheld by the Landlord. In connection with any assignment or sublease, the Tenant will pay the Landlord, as additional rent, the Landlord's out-of-pocket expenses and an assignment fee, up to a maximum of \$5,000.00 per assignment or sublease, in connection with each such assignment or sublease or new lease review/preparation. Any assignment or subletting will be on such terms and conditions as the Landlord may require as a condition of the Landlord's consent. The restrictions on assignment and subletting will also apply to: (a) any assignment or subletting that occurs by operation of law (including by reason death of the Tenant, if the Tenant is an individual, or, if the Tenant is an entity, by merger, consolidation, reorganization, transfer or other change in or of the Tenant's structure); (b) any assignment or subletting to our by a receiver or trustee in any federal or state bankruptcy, insolvency or other proceedings; (c) the sale, assignment or transfer of all or substantially all of the assets of the Tenant outside of the ordinary course of the Tenant's business, with or without specific assignment of this Lease; or (d) if the Tenant is an entity, the direct or indirect sale, redemption or other transfer of fifty percent (50%) or more of the voting equity interests in the Tenant or the acquisition of a fifty percent (50%) or more voting equity interest in the Tenant.

11. INDEMNIFICATION. The Tenant will hold harmless and indemnify the Landlord from and for any and all payments, expenses, costs, reasonable attorney fees (including attorney fees incurred in enforcing the Tenant's obligations under this Paragraph and from and for any and all claims and liability for losses or damage to property or injuries to persons occasioned wholly or in part by or resulting from any acts or omissions by the Tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors, or for any cause or reason whatsoever arising out of or by reason of the occupancy of the Premises by the Tenant or business of the Tenant.

12. MORTGAGE PRIORITY. This Lease will not be a lien against the Premises with respect to any mortgages that are currently or may hereafter be placed upon the Premises. Such mortgages will have preference and be superior and prior in lien to this Lease, irrespective of the date of recording of such mortgages. The Tenant will execute any instruments, without cost, which may be deemed necessary to further effect the subordination of this Lease to any such mortgages. A refusal by the Tenant to execute such instruments is a default under this Lease.

13. CONDEMNATION; EMINENT DOMAIN. If any portion of the Premises of which the Premises are a part is taken under eminent domain or condemnation proceedings, or if suit or other action shall be instituted for the taking or condemnation thereof, or if in lieu of any formal condemnation proceedings or actions, the Landlord grants an option to purchase and or sells and conveys the Premises or any portion thereof, to the governmental or other public authority, agency, body or public utility seeking to take the Premises or any portion thereof, then this Lease, at the option of the Landlord, will terminate, and the term hereof will end as of such date as the Landlord fixes by notice in writing. The Tenant will have no claim or right to claim or be entitled to any portion of any amount which may be awarded as damages or paid as the result of such condemnation proceedings or paid as the purchase price for such option, sale or conveyance in lieu of formal condemnation proceedings. The Tenant may, however, file a claim for any taking of fixtures and improvements owned by the Tenant, and for moving expenses. Except as provided in the preceding sentence, all rights of the Tenant to damages, if any, are hereby assigned to the Landlord. The Tenant will execute and deliver any instruments, at the expense of the Landlord, as may be deemed necessary to expedite any condemnation proceedings or to effectuate a proper transfer of title to such governmental or other public authority, agency, body or public utility seeking to take or acquire the Premises or any portion thereof. The Tenant will vacate the Premises, remove all of the Tenant's personal property therefrom and deliver up peaceable possession thereof to the Landlord or to such other party designated by the Landlord. The Tenant will repay the Landlord for such costs, expenses, damages and losses as the Landlord may incur by reason of the Tenant's breach hereof.

14. FIRE AND OTHER CASUALTY. If there is a fire or other casualty, the Tenant will give immediate notice to the Landlord. If the Premises are partially damaged by fire, the elements, or other casualty, the Landlord will repair the same as speedily as practicable, but the Tenant's obligation to pay the rent hereunder will not cease. If, in the opinion of the Landlord, the Premises are so substantially damaged as to render them untenable, then the rent will cease until such time as the Premises are made tenantable by the Landlord. If, however, in the opinion of the Landlord, the Premises are so substantially damaged that the Landlord decides not to rebuild, then the rent will be paid up to the time of such destruction and this Lease will terminate as of the date of such destruction. The rent, and any additional rent, will be apportioned as of the termination date, and any rent paid for any period beyond that date will be repaid to the Tenant. However, the preceding provisions of this Paragraph 15 will not become effective or be applicable if the fire or other casualty and damage are the result of the

carelessness, negligence or improper conduct of the Tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors. In such case, the Tenant's liability for the payment of the rent and the performance of all the covenants, conditions and terms hereof on the Tenant's part to be performed will continue and the Tenant will be liable to the Landlord for the damage and loss suffered by the Landlord. If the Tenant is insured against any of the risks herein covered, then the proceeds of such insurance will be paid over to the Landlord to the extent of the Landlord's costs and expenses to make the repairs hereunder, and such insurance carriers will have no recourse against the Landlord for reimbursement.

15. REIMBURSEMENT OF LANDLORD. If the Tenant fails or refuses to comply with any of the terms and conditions of this Lease, the Landlord may carry out and perform such conditions at the cost and expense of the Tenant, which amounts will be payable on demand to the Landlord. This remedy will be in addition to such other remedies as the Landlord may have by reason of the breach by the Tenant of any of the terms and conditions of this Lease.

16. INCREASE OF INSURANCE RATES. If for any reason it is impossible to obtain fire and other hazard insurance on the buildings and improvements on the Premises in an amount and in the form and from insurance companies acceptable to the Landlord, the Landlord may, at any time, terminate this Lease, upon giving to the Tenant thirty (30) days' notice in writing of the Landlord's intention to do so. Upon the giving of such notice, this Lease will terminate as of the date specified in such notice. If by reason of the use to which the Premises are put by the Tenant or character of or the manner in which the Tenant's business is carried on, the insurance rates for fire and other hazards increase, the Tenant will, upon demand, pay to the Landlord, as additional rent, the amounts by which the premiums for such insurance are increased.

17. INSPECTION AND REPAIR. The Landlord and the Landlord's agents, employees or other representatives, will have the right to enter into and upon the Premises or any part thereof, at all reasonable hours, on reasonable prior notice, for the purpose of examining the Premises or making such repairs or alterations therein as may be necessary for the safety and preservation thereof. This clause will not be deemed to be a covenant by the Landlord nor be construed to create an obligation on the part of the Landlord to make such inspection or repairs.

18. RIGHT TO EXHIBIT. The Tenant will permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to persons wishing to rent or purchase the Premises, and Tenant agrees that on and after next preceding the expiration of the term hereof, the Landlord or the Landlord's agents, employees or other representatives will have the right to place notices on the front of the Premises or any part thereof, offering the Premises for rent or for sale; and the Tenant will permit the same to remain thereon without hindrance or molestation. The Tenant will also permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to prospective mortgagees of the Premises or the land and improvements of which the Premises are a part.

19. REMOVAL OF TENANT'S PROPERTY. Any equipment, fixtures, goods or other property of the Tenant that are not removed by the Tenant upon the termination of this Lease, or upon any quitting, vacating or abandonment of the Premises by the Tenant, or upon the Tenant's eviction, will be considered as abandoned and the Landlord will have the right,, without any notice to the Tenant, to sell or otherwise dispose of the same, at the expense of the Tenant, and will not be accountable to the Tenant for any part of the proceeds of such sale, if any. If Tenant replaces the old and outdated dental fixture equipment, the newly installed dental fixtures will become the property of the Tenant upon replacement and will not be the property of the Landlord.

20. EVENTS OF DEFAULT. The following are "Events of Default" under this Lease: (a) a default by the Tenant in the payment of rent, or any additional rent when due or within days thereafter; (b) a default by the Tenant in the performance of any of the other covenants or conditions of this Lease, which the Tenant does not cure within days after the Landlord gives the Tenant written notice of such default; (c) the death of the Tenant (if the Tenant is an individual); (d) the liquidation or dissolution of the Tenant (if the Tenant is an entity); (e) the filing by the Tenant of a bankruptcy, insolvency or receivership proceeding; (f) the filing of a bankruptcy, insolvency or receivership proceeding against the Tenant which is not dismissed within Thirty (30) days after the filing thereof; (g) the appointment of, or the consent by the Tenant to the appointment of, a custodian, receiver, trustee, or liquidator of all or a substantial part of the Tenant's assets; (h) the making by the Tenant of an assignment for the benefit of creditors or an agreement of composition; (i) if the Premises are or become abandoned, deserted, vacated or vacant; (j) the eviction of the Tenant; or (k) if this Lease, the Premises or the Tenant's interest in the Premises passes to another by virtue of any court proceedings, writ of execution, levy, or judicial or foreclosure sale. If an Event of Default occurs, the Landlord, in addition to any other remedies contained in this Lease or as may be permitted by law, may either by force or otherwise, without being liable for prosecution therefore, or for damages, re-enter, possess and enjoy the Premises. The Landlord may then re-let the Premises and receive the rents therefore and apply the same, first to the payment of such expenses, reasonable attorney fees and costs, as the Landlord may have incurred in re-entering and repossessing the Premises and in making such repairs and alterations as may be necessary; and second to the payment of the rents due hereunder. The Tenant will remain liable for such rents as may be in arrears and also the rents as may accrue subsequent to the re-entry by the Landlord, to the extent of the difference between the rents reserved hereunder and the rents, if any, received by the Landlord during the remainder of the unexpired term hereof, after deducting the aforementioned expenses, fees and costs; the same to be paid as such deficiencies arise and are ascertained each month.

21. CURING TENANT'S DEFAULT. If Tenant defaults in the performance of any provision hereof, Landlord, without thereby waiving such default, may but shall not be obligated to perform the same at the expense of Tenant: (a) immediately or at any time thereafter and without notice in the case of emergency or in case such default interferes with any other tenant or with the efficient operation of the premises or may result in a violation of any Requirement; and (b) in any other case if such default continues for ten (10) days after the giving to Tenant of

notice of Landlord's intention so to perform the same. All expenses incurred by Landlord in connection with any such performance shall be paid by Tenant to Landlord on demand. If Landlord or Tenant shall initiate suit hereunder, then the prevailing party shall be entitled to recover all costs (including counsel fees and disbursements) incurred in such action upon demand. Except as otherwise provided in this Lease, all costs payable by Tenant (for material, labor, utility or other services furnished by Landlord or otherwise shall become due and payable in accordance with the terms of bills therefore rendered by Landlord. If any amount referred to in this Article or elsewhere in this Lease is not paid when due, the same shall become due and payable by Tenant as additional rent hereunder. In the event of nonpayment by Tenant of any additional rent becoming due hereunder, Landlord, in addition to any other right or remedy, shall have the same rights and remedies as in the case of default by Tenant in the payment of fixed rent. If Tenant is in arrears in the payment of fixed rent or additional rent, Tenant waives any right to designate the items against which payments made are to be credited, and Landlord may apply such payment to any items Landlord sees fit. Landlord reserves the right, without liability to Tenant and without constituting a constructive eviction, to suspend furnishing any material, labor, utility or other service, wherever Landlord is obligated to furnish the same at the expense of Tenant, if (but only so long as) Tenant is in arrears in paying therefore after demand. The damages referenced in this Paragraph, including, but not limited to, utilities, outstanding assessments, real estate taxes, late fees, reasonable attorney fees, and court fees shall be deemed "Additional Rent."

22. TERMINATION ON DEFAULT. If an Event of Default occurs, the Landlord may, at any time thereafter, terminate this Lease and the term hereof, upon giving to the Tenant five (5) days' notice in writing of the Landlord's intention so to do. Upon the giving of such notice, this Lease and the term hereof will end on the date fixed in such notice as if such date was the date originally fixed in this Lease for the expiration hereof; and the Landlord will have the right to remove all persons, goods, fixtures and chattels from the Premises, by force or otherwise, without liability for damage.

23. NON-LIABILITY OF LANDLORD. The Landlord will not be liable for any damage or injury which may be sustained by the Tenant or any other person, as a consequence of the failure, breakage, leakage or obstruction of the water, plumbing, steam, sewer, waste or soil pipes, roof, drains, leaders, gutters, valleys, downspouts or the like or of the electrical, gas, power conveyor, refrigeration, sprinkler, air-conditioning or heating systems, elevators or hoisting equipment; or by reason of the elements; or resulting from the carelessness, negligence or improper conduct on the part of any other tenant or of the Landlord or the Landlord's or the Tenant's or any other tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors; or attributable to any interference with, interruption of, or failure beyond the control of the Landlord, of any services to be furnished or supplied by the Landlord. This limitation on the Landlord's liability will not apply to damage or injury resulting from the gross negligence or willful misconduct of the Landlord or of the Landlord's agents, employees, guests, licensees, invitees, assignees or successors.

24. NON-WAIVER BY LANDLORD. The various rights, remedies, options and elections of the Landlord under this Lease are cumulative. The failure of the Landlord to enforce strict performance by the Tenant of the conditions and covenants of this Lease or to exercise any election or option, or to resort or have recourse to any remedy conferred in this Lease or the acceptance by the Landlord of any installment of rent after any breach by the Tenant, in any one or more instances, will not be construed or deemed too be a waiver or a relinquishment for the future by the Landlord of any such conditions and covenants, options, elections or remedies, but the same will continue in full force and effect.

25. NON-PERFORMANCE BY LANDLORD. This Lease and the obligation of the Tenant to pay the rent hereunder and to comply with the covenants and conditions hereof, will not be affected, curtailed, impaired or excused because of the Landlord's inability to supply any service or material called for in this Lease, by reason of any rule, order, regulation or preemption by any governmental entity, authority, department, agency or subdivision or for any delay which may arise by reason of negotiations for the adjustment of any fire or other casualty loss or because of strikes or other labor trouble or for any cause beyond the control of the Landlord.

26. VALIDITY OF LEASE. The terms, conditions, covenants and provisions of this Lease will be deemed too be severable. If any clause or provision contained in this Lease is adjudged to be invalid or unenforceable by a court of competent jurisdiction or by operation of any applicable law, it will not affect the validity of any other clause or provision in this Lease, but such other clauses or provisions will remain in full force and effect.

27. NOTICES. All notices required under the terms of this Lease will be given and will be complete by mailing such notices by certified or registered mail, return receipt requested, or by hand delivery, fax or overnight delivery service, to the address of the parties as shown at the beginning of this Lease, or to such other address as may be designated in writing, which notice of change of address is given in the same manner. The Tenant must provide their change of address, if the Tenant changes their primary residential address.

28. TITLE AND QUIET ENJOYMENT. The Landlord covenants and represents that the Landlord is the owner of the Premises and has the right and authority to enter into, execute and deliver this Lease; and does further covenant that the Tenant on paying the rent and performing the conditions and covenants contained in this Lease, will and may peaceably and quietly have, hold and enjoy the Premises for the term of this Lease.

29. ENTIRE CONTRACT. This Lease contains the entire contract between the parties. No representative, agent or employee of the Landlord has been authorized to make any representations or promises with reference to the leasing of the Premises, or to vary, alter or modify the terms hereof. No additions, changes or modifications, renewals or extensions hereof, will be binding unless reduced to writing and signed by the Landlord and the Tenant.

30. LIENS. If any construction or other liens are created or filed against the Premises by reason of labor performed or materials furnished for the Tenant in the erection, construction, completion, alteration, repair or addition to any building or improvement, the Tenant will, upon demand, at the Tenant's own cost and expense, cause such lien or liens to be satisfied and discharged of record together with any lien claims that may have been filed. Failure to do so, will entitle the Landlord to resort to such remedies as are provided in this Lease for any default of this Lease, in addition to such as are permitted by law.

31. WAIVER OF SUBROGATION RIGHTS. The Tenant waives all rights of recovery against the Landlord or the Landlord's agents, employees or other representatives for any loss, damages or injury of any nature whatsoever to property or persons for which the Tenant is insured. The Tenant will obtain from the Tenant's insurance carriers and will deliver to the Landlord, waivers of the subrogation rights under the respective policies.

32. ESTOPPEL CERTIFICATES. The Tenant will at any time and from time to time upon not less than days prior notice by the Landlord, execute, acknowledge and deliver to the Landlord or any other party specified by the Landlord, a statement in writing certifying that this Lease is unmodified and in full force and effect (or if there have been modifications, that this Lease is in full force and effect as modified and stating the modifications)) and the dates to which the rent, additional rent and other charges have been paid, and stating whether or not, to the knowledge of the signer of such certificate, the Tenant or the Landlord is in default in performance of any covenant, agreement or condition contained in this Lease, and, if so, specifying each such default of which the signer may have knowledge, as well as certifying too such other matters as the Landlord or the intended recipient of such certificate may reasonably request.

33. CONFORMATION WITH LAWS AND REGULATIONS. The Landlord may pursue the relief or remedy sought in any invalid clause, by conforming such clause with the provisions of the statutes or the regulations of any governmental agency as if the particular provisions of the applicable statutes or regulations were set forth at length in this Lease.

34. NUMBER AND GENDER. In all references in this Lease to any parties, persons or entities, the use of any particular gender or the plural or singular number is intended to include the appropriate gender or number as the text of this Lease may require. All the terms, covenants and conditions contained in this Lease will be for and will inure to the benefit of and will bind the respective parties hereto, and their heirs, executors, administrators, personal or legal representatives, successors and assigns.

IN WITNESS WHEREOF, the parties have caused this Lease to be executed under seal as of the date below upon which Landlord has executed this Lease.

LANDLORD:

UDREAM LLC

Witness: _____

By:  (SEAL)

Name: Rajeshree Patel

Title: Managing Member

Date:

TENANT:

RIYA CONVENIENCE LLC

Witness: _____

By: _____ (SEAL)

Name: Mukeshchandra Mohanlal Patel

Title: Managing Member

Date:

EIN # 99-4268861 _____

IN WITNESS WHEREOF, the parties have caused this Lease to be executed under seal as of the date below upon which Landlord has executed this Lease.

LANDLORD:

UDREAM LLC

Witness: _____

By: _____ (SEAL)

Name: Rajeshree Patel

Title: Managing Member

Date:

TENANT:

RIYA CONVENIENCE LLC

Witness: _____

By:  (SEAL)

Name: Mukeshchandra Mohanlal Patel

Title: Managing Member

Date:

EIN # 99-4268861 _____

EXHIBIT A
GUARANTY

Landlord: **UDREAM LLC**

Tenant: **RIYA CONVENIENCE LLC**

Lease Date: **SEPTEMBER 9, 2024**

Guarantor(s): **MUKESHCHANDRA MOHANLAL PATEL & GAURIBEN
MUKESHCHANDRA PATEL**

Landlord will not enter into the above-referenced Lease unless it receives a guaranty of the payment and performance of Tenant's obligations under the Lease and any extensions and renewals thereof or holdover thereunder.

In order to induce Landlord to enter into the Lease with Tenant and in consideration thereof, Guarantor irrevocably and unconditionally guarantees to Landlord the timely and complete performance and observance of all agreements and obligations (collectively, "Obligations") of Tenant, and Tenant's successors, assigns and subtenants, arising under the Lease and all renewals, modifications, amendments and extensions thereof (which shall be deemed included in the term "Lease" as used herein), including, without limitation, the obligation to pay (a) the full rent for the entire term of the Lease as now stated therein, regardless of whether such term is shortened or lengthened or such rent reduced or increased for any reason or by any cause, (b) all additional rent and other sums payable to Landlord under the Lease, and (c) all damages, losses, costs, interest, charges and expenses (including, without limitation, reasonable attorney's fees) of every kind, nature and description, suffered or incurred by Landlord arising in any manner out of, or in any way connected with any default by Tenant under the Lease. If the rent, or any part thereof, under the Lease is accelerated by reason of Tenant's default thereunder or otherwise, and if Tenant shall fail to pay such accelerated rent, then Guarantor shall pay same to Landlord on demand. Without limitation to the foregoing or to any other provision of this Guaranty, if Tenant fails to observe or perform any Obligation in accordance with the Lease, including, without limitation, the Obligation to pay rent, then, on Landlord's demand, Guarantor shall fully observe and perform such Obligation. This Guaranty is continuing and shall be effective regardless of how long before or after the date hereof any of Tenant's Obligations were incurred or accrued. The liability of Guarantor shall not be affected by the bankruptcy or insolvency of Tenant or any other guarantor or by a discharge, confirmed plan, lien avoidance, limitation of allowability or other aspect or provision of bankruptcy or insolvency proceedings or law or by any defense of Tenant or any other guarantor.

Guarantor agrees that Landlord may, at any time and from time to time, either with or without consideration: (a) surrender any property or collateral of any kind or nature whatsoever

held by Landlord or by any person on Landlord's behalf securing any or all of the Obligations, (b) substitute for any property or collateral so held other property or collateral of like kind or of any other kind, (c) acquire new security for the Obligations, (d) amend, supplement or modify the terms of the Lease, (e) consent to or allow any subletting of the property demised under the Lease and (f) exercise any right or remedy against Tenant under the Lease (including, without limitation, the right to accelerate rent under the Lease and the right to terminate the Lease), all without notice to or consent from Guarantor, and all without impairing the liability of Guarantor hereunder. Guarantor waives notice of acceptance of this Guaranty, and of any default by Tenant under the Lease.

The liability of Guarantor hereunder is absolute and unconditional and shall not be affected by, and Guarantor hereby waives and agrees not to assert or take advantage of: (a) any right to require Landlord to proceed against Tenant or any other person or to exhaust any security held by Landlord or to pursue any right or remedy before proceeding against Guarantor, (b) the defense of the statute of limitations in any action hereunder or for the collection of any indebtedness or the performance of any Obligation hereby guaranteed, (c) any defense arising by virtue of the failure of Landlord to file or enforce any claim, (d) any notice of the existence, creation or incurring of any new or additional indebtedness or obligation by, or of any action or non-action on the part of, Tenant or Landlord, (e) any defense arising by virtue of the lack of authority, dissolution, incompetency, death or disability of Tenant or any other person, (f) any defense based upon an election of remedies by Landlord, including, without limitation, an election to proceed by non-judicial means that destroys or otherwise impairs any subrogation or other rights of Guarantor against Tenant, (g) any termination of the Lease prior to its stated expiration date and (h) any duty on the part of Landlord to disclose to Guarantor any fact that Landlord may now or hereafter know about Tenant, regardless of whether Landlord has reason to believe that such fact materially increases the risk beyond that which Guarantor intends to assume, or has reason to believe that such fact is unknown to Guarantor, or has a reasonable opportunity to communicate such fact to Guarantor, it being agreed that Guarantor is fully responsible for being and keeping informed of the financial condition of Tenant and of all facts and circumstances bearing on the satisfaction and performance of the Obligations.

Guarantor waives any and all rights of subrogation against Tenant by reason of Guarantor's payment or performance of Tenant's obligations and subordinates any liability or indebtedness of Tenant held by Guarantor to the obligations of Tenant to Landlord.

This Guaranty may not be modified, discharged or terminated in any manner other than by an agreement in writing signed by Guarantor and Landlord.

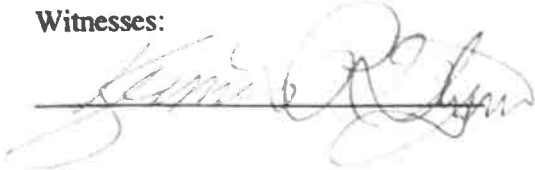
Guarantor is primarily obligated under the Lease. Landlord may, at its option, proceed against Guarantor without proceeding against Tenant or anyone else obligated under the Lease or against any security for any of Tenant's or Guarantor's obligations.

Guarantor will pay upon demand the reasonable attorneys' fees and costs incurred by Landlord in connection with the enforcement of this Guaranty.

Guarantor irrevocably appoints Tenant as its agent for delivery of notices and for service of process related to this Guaranty.

Guarantor has executed this Guaranty under seal and on the date hereof.

Witnesses:



Guarantor:



(SEAL)

Name: Mukeshchandra Mohanlal Patel

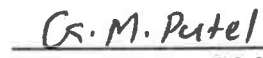
Address: 119 Cottage Street, Ground Floor
Jersey City, New Jersey 07306

SS#: 679-79-6181

Witnesses:



Guarantor:



(SEAL)

Name: Gauriben Mukeshchandra Patel

Address: 119 Cottage Street, Ground Floor
Jersey City, New Jersey 07306

SS#: 306-83-9662